

ORDINANCE NO. _____

ENTITLED: “AN ORDINANCE AMENDING THE OFFICIAL ZONING MAP OF THE CITY OF CHEYENNE CHANGING THE ZONING CLASSIFICATION FROM HR (HIGH-DENSITY RESIDENTIAL) TO CB (COMMUNITY BUSINESS) FOR PROPERTY GENERALLY LOCATED EAST OF INTERSTATE 25 AND NORTH OF CENTRAL AVENUE ADJACENT TO HYND S BOULEVARD.”

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That the owner(s) of the property described herein has (have) applied for a zoning map amendment (“zone change”) for said property in accordance with Section 2.2.1, Zoning Map Amendment, of the Cheyenne Unified Development Code (“UDC”).

Section 2. That on October 5, 2020, the City of Cheyenne Planning Commission conducted a public hearing, reviewed the proposed zone change that is the subject of this ordinance, and recommended approval of said zone change.

Section 3. That the Governing Body of the City of Cheyenne finds that the zone change that is the subject of this ordinance meets the criteria specified in Section 2.2.1.d of the UDC.

Section 4. That, in accordance with Section 2.2.1, Zoning Map Amendment, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map, of the UDC, the aforementioned application is hereby approved and the zoning classification of the real property described as Lot 3, Block 4, Country Club Estates Second Filing, Cheyenne, Wyoming is hereby changed to CB Community Business.

Section 5. That the City Engineer is hereby authorized and directed to alter and amend the Official Zoning Map as described in Section 5.1.3 of the UDC to comply with the zone change as described in Section 4 above when this ordinance takes effect in accordance with Section 7 below.

Section 6. Sections, paragraphs, sentences, clauses and phrases of this ordinance are severable. If any section, paragraph, sentence, clause, or phrase of this ordinance is declared unconstitutional, such unconstitutionality shall not affect any of the remaining sections, paragraphs, sentences, clauses, and phrases.

Section 7. That this ordinance shall be in full force and effect upon its approval and publication, and the recording of the annexation encompassing the area described in Section 4 with the County Clerk and Ex-Officio Register of Deeds for Laramie County, Wyoming.

FIRST READING: _____

SECOND READING: _____

THIRD AND FINAL READING: _____

MARIAN J. ORR, MAYOR

(SEAL)
ATTEST:

KRISTINA F. JONES, CITY CLERK

publish date: _____



A COMMUNITY OF CHOICE

Planning and Development Department

2101 O'Neil Avenue, Suite 202, Cheyenne WY 82001

(Phone) 307-637-6282 (Fax) 307-637-6366

MEMO

To: Honorable Mayor Marian J. Orr and Members of the City Council
From: Mark Christensen, Planner II
Subject: UDC-20-00380 / 5307 Hynds Blvd Rezoning
Date: October 12, 2020

Background:

The item for consideration is a **Rezoning**. This is approved by **Ordinance**.

The proposed Governing Body review schedule is as follows:

- Introduction and Referral 10/12/2020
- Public Services Committee 10/20/2020
- 2nd reading 10/26/2020
- Public Services Committee 11/03/2020
- Third and final reading 11/09/2020

Related Items:

- Land Use Plan Amendment (PLN-20-00010)

Planning Commission Recommendation:

The Planning Commission heard this item at their October 5, 2020 meeting and **unanimously** recommended the Governing Body approve this application.

The Planning Commission Staff report is attached and has not been changed.

Attachments:

1. Ordinance
2. Planning Commission Staff Report



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CITY OF CHEYENNE PLANNING COMMISSION
10/5/2020
STAFF REPORT

FILE: UDC-20-00380: 5307 Hynds Blvd. Zoning Map Amendment

REQUEST: A request to rezone 0.92 acres of platted land from HR (High-density Residential) District to CB (Community Business) District

LOCATION: East of Interstate 25, adjacent to Hynds Boulevard.

APPLICANT: AVI, PC (Brad Emmons)

OWNER: Church of Jesus Christ Apostolic Assembly (Steven Keith)

ZONING: HR (High-density Residential) District

PURPOSE: To facilitate building reuse for a Child Care, Center-Major.

PREPARED BY: Mark Christensen, Planner II



RECOMMENDED MOTION:

Move to **approve** the rezoning 0.92 acres of platted land from HR (High-density Residential) District to CB (Community Business) District, noting that the project meets the review criteria for approval.

APPLICABLE CITY CODE SECTION(S) AND PLANS:

- UDC 2.2.1 Zoning Map Amendment
- PlanCheyenne

BACKGROUND:

The applicant is requesting rezoning of 0.92 acres of land to CB (Community Business) District for a Child Care, Center-Major. The County Assessor presently shows the tract of land as 1 parcel. The land is presently used as a Neighborhood Assembly facility (Church).

The land was platted as the Country Club Estates, Second Filing. The subject property received approval for a Final Plat from the Governing Body on April 2, 1963.

SURROUNDING LAND USE AND ZONING:

	Future Land Use Designation	Zoning	Land Use
Subject Site	Public/Quasi-Public	HR (High-Density Residential)	Neighborhood Assembly (Church)
North	Urban Residential	HR	Residential
South	Community Business	CB	Storage Park
East	Community Business	CB	Storage Park
West	Public/Quasi-Public	P	ROW (I-25); Office

The property is currently zoned HR (High-density Residential) District. The HR district is intended for a range of higher density, urban residential lots and building types within a neighborhood. All uses require full access to public infrastructure and city services. The regulations are designed to protect the urban character of the district and protect the primarily residential use of land.

ANALYSIS OF APPLICATION CONFORMANCE WITH REVIEW CRITERIA:

Should the Planning Commission wish to recommend approval of the Zoning Map Amendment, the Commission must make the following findings required in UDC 2.2.1.d a detailed analysis is below:

1) The application is in accordance with the development policies and physical patterns identified in the Comprehensive Plan. (UDC 2.2.1.d.1)

The Future Land Use designation for the subject property is Public/Quasi-Public. The most appropriate zone for the Public/Quasi-Public designation is P, Public District. Many religious institutions within the City carry the Public/Quasi-Public Future Land Use designation. However, the Public/Quasi-Public designation does not account for the redevelopment and reuse of such properties. A Future Land Use Map amendment is accompanying this zone change to change the designation to Community Business which will result in the zone change conforming to the Future Land Use Map. Furthermore, the property to the southeast is designated Community Business in the future land use map. Although the proposed Zoning Map Amendment does not currently conform to the Future Land Use Designation within PlanCheyenne, it does accomplish several policies and components contained within the Plan. The Zoning Map Amendment fulfills the following development policies and physical patterns in the Comprehensive Plan:

- **Policy 1.1.B. Flexibility to Market Demands:** This goal notes that the Future Land Use Plan does not predetermine all uses on individual parcels and is meant to provide flexibility. The future land use map amendment to CB is to accommodate a new use other than a place of worship that was not foreseen at the time the Future Land Use Map was created.
- **Policy 1.4.A. Infill Opportunities:** The future land use map amendment will facilitate the reuse of an existing building and provide an infill opportunity. There is the potential this use may locate on the periphery of the City if this infill opportunity does not come to fruition.
- **Policy 1.4.E. Building Reuse:** The applicant is proposing to reuse the existing building for a child care center. This future land use map amendment will facilitate the reuse of an existing building in a manner that is not possible under its current zoning designation.

Through the several policies addressed in PlanCheyenne and the accompanying Future Land Use Map Amendment, the proposed zone change for the subject property from HR to CB **complies** with review criteria 1.

2) The application is compatible with nearby property, specifically considering existing zoning, the Comprehensive Plan, and any other official plans and policies created under the guidance of that plan for these areas; (UDC 2.2.1.d.2)

The application is compatible with nearby property zoning and future land use designations. The subject property is situated in a moderate activity area in close proximity to Central High School and other commercial properties. The surrounding properties to the south and east of the subject property are zoned CB (Community Business) District and carry a Community Business Future Land Use Designation. The proposed use is permitted by right in the CB District, meaning it could locate on the surrounding properties if a development opportunity presented itself. This illustrates the compatibility of this zone change with the surrounding area and land uses.

The proposed zone change for the subject property from HR to CB **complies** with review criteria 2.

- 3) The suitability of the subject property for development according to the standards and uses of the existing zoning district, compared to the suitability of the subject property for development according to the standards and uses of the proposed zoning district (UDC 2.2.1.d.3)**

The existing building has limited development opportunities in the HR District. The HR district is intended for a variety of residential units at higher densities. In order to redevelop into residential units at this location the existing buildings would likely need extensive remodeling or to be removed and the property may need replatted. The CB District will allow a larger variety of uses that can result in the reuse of the existing buildings. Additionally, the size of the lot is more compatible with the CB lot type than the lot types permitted in the HR District.

The proposed zone change for the subject property from HR to CB **complies** with review criteria 3.

- 4) The ability of the subject property and surrounding vicinity to be developed according to the Subdivision Standards in Article 4 considering the proposed zoning (UDC 2.2.1.d.4)**

The subject property does not require any subdivision processes at this time. Any additional lot requirements regarding the use of the parcel will be addressed in the site plan review process.

The proposed zone change for the subject property from HR to CB **complies** with review criteria 4.

- 5) The ability of the application to support the Intent and Applicability statements of the proposed zoning district, and achieve the Design Objectives of any specific standards. (UDC 2.2.1.d.5)**

The application supports the intent and applicability of the CB zone . The CB District is intended for Retail, Employment, Service and Civic uses that may serve a number of residential neighborhoods or other districts in meeting daily needs, discretionary needs, or other business functions. A child care center at this location will support the high density residential neighborhood to the north by providing child care to the adjacent residences. Additionally, staff is satisfied the proposed use can achieve the design standards of the CB district or utilize an administrative adjustment for non-conforming site conditions.

The proposed zone change for the subject property from HR to CB **complies** with review criteria 5.

- 6) The ability of all potential future development to meet all applicable standards for development in the proposed zoning district, including other development options in the event that any specific development proposed in association with the application is not executed after approval. (UDC 2.2.1.d.6)**

The subject property is well suited to meet all applicable standards of the CB district should the current proposed development not be executed. The CB district allows a variety of uses and

permits flexible development standards that will accommodate a variety of development proposals.

The proposed zone change for the subject property from HR to CB **complies** with review criteria 6.

7) The review and recommendations of other reviewing bodies. (UDC 2.2.1.d.7)

The Planning and Development Department received the following review and recommendations from other reviewing agencies:

- **Planning and Development**
 - *Complete.* Please check your notification list. It appears I have gotten more addresses with my buffer than what was provided to us. Please ensure the buffer is 300'. If you need to send more letters, please send another copy to us. The deadline to mail these for the October Planning Commission Meeting is September 20.
 - *Complete.* Please correct the zoning information. The site is going from HR to CB. It is correct in one area but incorrect under Zoning.
 - *Complete.* Please correct proposed use and estimated trips per day.
 - *Complete.* Please briefly overview surrounding land uses.
 - *Complete.* Please provide existing building dimensions and heights. This can be on the buildings or under existing buildings section.
 - *FYI.* The project is going through a Future Land Use Map amendment at the same time. Please note the zone change does not conform to the Future Land Use Map without this amendment, thus it will be more difficult to state it complies with criteria 1.
- **Engineering**
 - None
- **Metropolitan Planning Organization**
 - None
- **Recreation and Events**
 - None

The proposed zone change for the subject property from MUB to CB **complies** with review criteria 7.

8) Whether the application will harm the public health, safety, or general welfare. (UDC 2.2.1.d.8)

City staff is satisfied that this proposed zone change would not adversely affect the public health, safety, or general welfare.

The proposed zone change for the subject property from MUB to CB **complies** with review criteria 8.

CONFORMANCE WITH APPLICABLE PLANS:

The project is located in an area covered by the following plans:

- PlanCheyenne

The application conforms to PlanCheyenne per the discussion with Review Criterion 1.

STAFF REVIEW:

The application is consistent with the surrounding CB zone. The proposed child care use would be compatible with the residential properties to the north by providing a place for residents to have childcare in close proximity to their home. Furthermore, if the proposed use does not come to fruition, staff believes the CB zone would still be appropriate for the subject property. The application accomplishes several goals contained in PlanCheyenne without having a negative impact on the health, safety, and welfare of the community.

CONCLUSION:

Staff is satisfied that the application meets the review criteria set forth in UDC 2.2.1.(d) The application facilitates the reuse of an existing building, is complimentary to the surrounding neighborhood by providing a place for child care, and is compatible with the existing CB zone district to the east and south. The zone change meets the review criteria of UDC 2.2.1.(d); therefore, staff recommends approval of the zoning map amendment as submitted by the applicant.

ALTERNATIVES:

1. Recommend approval of the zoning amendment as submitted by the applicant (**Staff Recommendation**).
2. Recommend approval of the zoning amendment subject to conditions or modifications.
3. Recommend denial of the zoning amendment based on findings of denial. The Planning Commission must conclude that the project does not meet all the review criteria. As part of the motion, findings for denial must be stated.
4. Postpone the zoning amendment until issues identified during the meeting can be resolved.

General Information Regarding Alternatives:

In the event that the Commission acts contrary to staff's recommendation or modifies conditions of approval, the Commission shall cite specific reasons (based on the review criteria) for approval or denial.

STAFF RECOMMENDATION:

Staff recommends approval of the rezoning of the property from HR (High-density Residential) District to CB (Community Business) District.

ATTACHMENTS:

1. Zoning Map
2. Land Use Plan Map
3. Submitted Application
4. Applicant-submitted zoning map
5. Supporting photos



